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File No.: EXP202316546

IMI Reference: A56ID 490227

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint on October 3, 2022, with the French data protection authority. The complaint is directed against GUAW, S.L with NIF B42793976 (hereinafter, GUAW). The reasons on which the complaint is based are as follows:

On August 9, 2022, the complainant requested the website ***URL.1 to delete their personal data in accordance with Article 17.1 of the General Data Protection Regulation (hereinafter, GDPR). By the date the complaint was filed, the complainant had not received any response to this deletion request. Along with the complaint, the following is provided:

- Printout of an email sent on August 9, 2022, by ***EMAIL.1 indicating that it is a response to a message left in customer service, and whose content acknowledges receipt of this message with the following text:

“MESSAGE SENT

Here is the message you sent us!

Gentlemen.

In accordance with Article 17.1 of the General Data Protection Regulation (GDPR), I kindly ask you to delete the following personal data concerning me from your files.

You will also notify this request for deletion of my data to the organizations to which you may have communicated them (Article 19 of the GDPR).

Finally, I ask you to inform me of these elements as soon as possible and no later than one month from the receipt of this letter (Article 12.3 of the GDPR).

In the absence of a response from you within the stipulated deadlines or in case of an incomplete response, I will file a complaint with the National Commission for Information and Liberties (CNIL).

Sincerely.

A.A.A.

We will contact you as soon as possible

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Sincerely, Petsonic team”

[Unofficial translation:

“MESSAGE SENT

Here is the message you sent us!

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In accordance with Article 17.1 of the General Data Protection Regulation (GDPR), I kindly ask you to delete the following personal data concerning me from your files.

I also wish for you to notify this request for deletion of my data to the organizations to which you have communicated them (Article 19 of the GDPR).

Finally, I ask you to inform me about these requests as soon as possible and, at the latest, within one month from the receipt of this email (Article 12, paragraph 3, of the GDPR).

In the absence of a response from you within the established timeframe or in case of an incomplete response, I will submit a complaint to the National Commission for Information and Liberties (CNIL).

Sincerely.

Mr. A.A.A.

We will contact you as soon as possible

Sincerely, Petsonic team”]

SECOND: Through the “Internal Market Information System” (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on March 3, 2023, and was registered with the Spanish Agency for Data Protection (AEPD) on March 6, 2023. The transfer of this complaint to the AEPD was carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that GUAW has its sole establishment in Spain.

According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, the data protection authority of France acts as the interested authority, in accordance with the provisions of Article 4.22) letter c) of the GDPR, as it is the supervisory authority to which the complaint has been submitted, without other supervisory authorities having declared interest in this proceeding.

THIRD: On March 24, 2023, in accordance with the then-applicable Article 64 of Organic Law 3/2018, of December 5, on Protection of

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Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint submitted by the claimant was admitted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On June 21, 2023, a document was submitted to the AEPD on behalf and representation of GUAW in response to an information request, with entry registration number ***REGISTRO.1, which included, among other things, the following information:

1. Regarding the response given to the claimant about their exercise of the right to erasure of personal data, it was indicated as follows: “after analyzing the request and rights petition submitted by Mr. A.A.A. dated August 9, 2022, and reviewing the internal processes, it has been confirmed that the company proceeded to erase the data, but in doing so, all conversations held to date with (...) were also deleted, and, until that moment, a user of the website.”

2. It was indicated that “The team of professionals responsible for managing requests from individuals who contact GUAW follows an internal process for the erasure of user or client information (Annex I), which has been created ad hoc to respond to both requests for cancellation of commercial communications (newsletters) and the exercise of rights related to personal data.” A copy of the “INTERNAL DATA ERASURE PROCESS” was provided. Within this process, the following steps were observed, among others:

- “STEP 3: we respond to the client's request,” where it was noted that the client received an email similar in appearance to that provided by the CNIL in response to a message left in the customer service.

- “STEP 4: The customer service team deletes their data except for the purchase data to comply with the legal retention period of 5 years.”

- “STEP 6: All customer data is deleted, as well as the conversations held with them. CUSTOMER DELETED”

3. It was indicated that the invoice that was issued to the claimant "is the only thing we keep to comply with the requirements of sectoral regulations (Tax Law and Commercial Code)."

4. A copy of the invoice for the order placed by the claimant at PETSONIC (which is indicated to be a trademark of GUAW) was provided, showing the name and surname of the claimant, the delivery address, and the billing address.

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5. Screenshots of the information regarding this order that appears in the GUAW information systems. These screenshots contain data about the order and the statuses it has gone through (at the logistics level). No personal data of the claiming party was observed in these screenshots; and, in the space reserved for the "SHIPPING ADDRESS," it is indicated "Customer data deleted by the official GDPR module."

6. It was indicated that:

"the situation at hand has occurred due to a request for a product change/return, which, being the customer's mistake, incurs a cost of €9.95, from which subsequently arises a request to exercise the right of deletion.

Nevertheless, to prevent such an event from happening again, various actions are being carried out by GUAW, which are detailed below:

- Review of the internal data deletion process, which is now specified in mere steps to follow on a PDF, to convert it into a genuine protocol, mandatory for all those involved in addressing the rights of access, rectification, deletion, limitation, portability, and not to be subject to automated individual decisions.

- Monitoring of the process followed by the professionals responsible for handling such requests to ensure it functions correctly.

- Reinforcement training for the professionals in charge regarding the protocol to follow concerning data protection issues and, especially, to emphasize the importance of respecting the rights of the affected parties.

- This week, the affected party has been informed and communicated that their right to data deletion has been addressed."

7. The application of the LOPDGDD was alleged, which in its article 65.3 establishes:

"The Spanish Agency for Data Protection may also dismiss the complaint when the data controller or processor, after a warning issued by the Spanish Agency for Data Protection, has adopted corrective measures aimed at ending the possible breach of data protection legislation and any of the following circumstances apply:

a) That no harm has been caused to the affected party in the case of the infringements provided for in article 74 of this organic law.

b) That the rights of the affected party are fully guaranteed through the application of the measures."

And requested: "Considering all that has been stated above, that is, once the facts were known, GUAW proceeded to delete the data and addressed their request, that no harm has been caused, and that the protocols have been internally reviewed to act with even greater diligence and with the utmost respect for the rights of the interested parties from now on, we request that the complaint of Mr. A.A.A. be dismissed."

8. GUAW S.L. indicated that "This week, the affected party has been informed and communicated that their right to data deletion has been addressed." The sending or

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The receipt of this communication and its content has not been provided during these proceedings.

During the inspection proceedings, the following regulatory references have been identified as relevant:

9. Law 58/2003, of December 17, General Tax Law, which in its article 29.2 establishes:

“Besides the others that may be legally established, taxpayers must comply with the following obligations:

...

e) The obligation to issue and deliver invoices or substitute documents and to keep the invoices, documents, and justifications related to their tax obligations.

f) The obligation to provide the tax administration with books, records, documents, or information that the taxpayer must keep in relation to the compliance with their own tax obligations or those of third parties, as well as any data, report, background, and justification with tax significance, at the request of the Administration or in periodic declarations. When the required information is kept in electronic format, it must be provided in that format when requested.”

And in its article 66, the prescription periods are established as follows:

“Prescribe in four years the following rights:

a) The right of the Administration to determine the tax debt through the appropriate settlement.

b) The right of the Administration to demand payment of settled and self-settled tax debts.

c) The right to request refunds derived from the regulations of each tax, refunds of undue payments, and reimbursement of the cost of guarantees.

d) The right to obtain refunds derived from the regulations of each tax, refunds of undue payments, and reimbursement of the cost of guarantees.”

10. According to the inquiry made on July 3, 2023, in the Monitoriza service of Axesor (<https://monitoriza.axesor.es>), GUAW SL is a company of the type “(...)” with sales in the last fiscal year (2022) of X.XXX.XXX € and a number of employees of XX.

FIFTH: On January 19, 2024, the Director of the AEPD adopted a draft agreement to initiate a warning procedure. Following the process established in article 60 of the GDPR, on January 25, 2024, the aforementioned draft was transmitted through the IMI system, and the interested authority was informed that it had four weeks from that moment to submit relevant and justified objections. The processing period of the proceedings was automatically suspended during these four weeks, in accordance with the provisions of article 64 of the LOPDGGD.

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Within the deadline for this purpose, the interested control authority did not submit relevant and justified objections in this regard, so it is considered that all authorities agree with this draft and are bound by it, in accordance with the provisions of section 6 of article 60 of the GDPR.

SIXTH: On February 26, 2024, the Director of the Spanish Data Protection Agency agreed to initiate a warning procedure against GUAW for the alleged infringement of article 17 of the GDPR, classified in article 83.5 of the GDPR, in which it was indicated that it had a period of ten days to present allegations. This initiation agreement, which was notified to GUAW in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was acknowledged on February 28, 2024, as stated in the acknowledgment of receipt in the file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on March 7, 2024. In this notification, it was reminded of its obligation to communicate electronically with the Administration, and it was informed of the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

SEVENTH: On March 11, 2024, a letter from GUAW was received by this Agency, in due time and

form, in which it presented allegations against the initiation agreement. In these allegations, in summary, it stated that:

- First: the documented evidence already provided in the file is sufficient and relevant. They are again submitted as Annexes I, II, and III of the allegations.
- Second: GUAW has an internal procedure created ad hoc to unsubscribe from commercial communications and to exercise personal data rights. The present case originated from a request for a refund due to a customer error, which involved a cost of €9.99, from which a request for data deletion arose. Furthermore, GUAW adopted a series of measures to prevent a situation like this from occurring again.
- Third: it requests the filing of the proceedings under article 65.3 of the LOPDGDD, considering that GUAW deleted the requested data, that no harm was caused, and that measures were adopted to act with greater diligence and maximum respect for the rights of the interested parties in the future.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Data Protection Agency in the present procedure,

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PROVEN FACTS

FIRST: On August 9, 2022, GUAW sent an email to the claimant from ***EMAIL.1 indicating that it was a response to a message left in the customer service, and the content acknowledges the receipt of this message with the following text:

“MESSAGE SENT

Here is the message you sent us!

Gentlemen.

In accordance with Article 17.1 of the General Data Protection Regulation (GDPR), I request that you delete from your files the following personal data concerning me.

I also request that you notify this request for the deletion of my data to the organizations to which you may have communicated them (Article 19 of the GDPR).

Finally, I ask that you inform me of these matters as soon as possible and, at the latest, within one month from the receipt of this letter (Article 12.3 of the GDPR).

If I do not receive a response from you within the stipulated time or in the case of an incomplete response, I will file a complaint with the National Commission on Informatics and Liberties (CNIL).

Sincerely.

Mr. A.A.A.

We will contact you as soon as possible

Sincerely, Petsonic team”

[Unofficial translation:

“MESSAGE SENT

Here is the message you sent us!

Gentlemen.

In accordance with Article 17.1 of the General Data Protection Regulation (GDPR), I request that you delete from your files the following personal data concerning me.

I also wish that you notify this request for the deletion of my data to the organizations to which you have communicated them (Article 19 of the GDPR).

Finally, I request that you inform me about these requests as soon as possible and, at the latest, within one month from the receipt of this email (Article 12, section 3, of the GDPR).

If I do not receive a response from you within the established time frame or in the case of an incomplete response, I will file a complaint with the National Commission on Information and Liberties (CNIL).

Sincerely.

Mr. A.A.A.

We will contact you as soon as possible
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SECOND: On March 6, 2023, GUAW S.L. issued an invoice numbered ***FACTURA.1, order reference ***PEDIDO.1, order date March 6, 2023, in which the following delivery and billing data can be seen:

A.A.A.

***ADDRESS.1

This invoice was submitted to this AEPD, with entry registration number ***REGISTRO.1, on June 21, 2023, as Annex III of the response to the information request, indicating that invoices are retained for a period of five years to comply with the Tax Law and Commercial Code.

THIRD: On June 21, 2023, as presented in Annex II of the response to the information request of that date, entry registration number ***REGISTRO.1, in the screenshot of GUAW's systems, information associated with order ***PEDIDO.1 can be seen, and in the space reserved for the “SHIPPING ADDRESS” it indicates “Customer data deleted by the official GDPR module.” These same screenshots were presented again to this Agency on March 11, 2024, as Annex II of the statement of objections to the initiation agreement of the present procedure.

FOURTH: According to the query made on July 3, 2023, in the Monitoriza service of Axesor (<https://monitoriza.axesor.es>), GUAW SL is a company of the type “(...)” with sales in the last fiscal year (2022) of X.XXX.XXX € and a number of employees of XX.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 and 60 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...”

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regulatory provisions issued in its development and, insofar as they do not contradict them, with subsidiary character, by the general rules on administrative procedures.”

II

Preliminary Issues

In the present case, according to the provisions of articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since GUAW collects and retains, among others, the following personal data of individuals: name and surname and email address, among other processing activities. GUAW carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, pursuant to article 4.7 of the GDPR. Furthermore, it is a cross-border processing, as GUAW is established in Spain, although it provides services to other countries in the European Union.

III

Claims Made

Regarding the claims made concerning the initiation agreement of the present procedure, a response is provided according to the order presented by GUAW:

First. Evidence on the data deletion process carried out

GUAW claims that, as the Agency itself indicates, the possible infringement of article 12 of the GDPR would be time-barred, so that the entire warning procedure derives from whether it is proven "that the personal data of the claimant has been duly deleted."

GUAW considers that the documented evidence submitted in the letter dated June 21, 2023, in response to a request for information, is sufficient and relevant, and therefore resubmits it as Annexes I and II. GUAW insists that "...it has been confirmed that the company proceeded to delete the data, but in doing so, all conversations held to date with the claimant and, until that moment, user of the website were also deleted. To substantiate this point, two documents are attached: the internal process of deleting information of users or clients of GUAW (Annex I) and a screenshot of the current database with the existing information (Annex II). After proceeding with the deletion of data, obviously, Mr. A.A.A. has not received any further communication from PETSONIC."

Attached as Annex III to the letter of claims is the proof of submission of the letter with registration number ***REGISTRO.1.

In this regard, this Agency agrees with GUAW that the possible infringement of article 12 of the GDPR would be time-barred and that the object of the present procedure is to verify whether there has been an infringement of article 17 of the GDPR, for which GUAW must prove to this Agency that the personal data of the claimant has been duly deleted. In this sense, this Agency wishes to emphasize that no new evidence has been provided, but rather what was already submitted along with the letter of June 21, 2023, in response to the information request.

In this letter, a bill of the claimant's order was provided as Annex III, with all its delivery details (which matched the billing details). And as Annex II, screenshots of the alleged GUAW systems were provided, containing information about such order, in which the shipping address section displayed the legend "Customer data deleted by the official GDPR module." This same screenshot of GUAW's systems was submitted along with the letter of claims regarding the initiation agreement of the present procedure.

However, as indicated in the aforementioned initiation agreement, this Agency considers that such screenshots are not sufficient to duly prove the deletion of the personal data of the claimant.

Therefore, this claim is dismissed.

Second. On the measures adopted by GUAW

GUAW claims that the team responsible for managing requests from individuals contacting GUAW follows an internal process for the deletion of information of users or clients (Annex I of the claims), which has been created ad hoc to respond to both requests for cancellation of commercial communications (newsletters) and the exercise of rights related to personal data. And that proof of compliance with current regulations is that, despite having a large volume of communications, to date there is no record of any complaints or claims from any interested party, as all requests for the exercise of rights and/or other requests received from interested parties have been attended to. It also indicates that the present case arose due to a request for a change/return of a product that, being a customer error, incurs a cost of €9.95, from which subsequently derives a request for the exercise of the right to deletion.

Finally, GUAW claims that, to prevent such an event from happening again, various measures have been implemented by GUAW, which are detailed below:

- Review of the internal data deletion process, which is now specified in mere steps to follow on a PDF, to convert it into a true protocol, mandatory for all those involved in the handling of rights of access, rectification, deletion, limitation, portability, and not to be subject to automated individual decisions. In October 2023, the Protocol "RIGHTS OF ACCESS, RECTIFICATION, DELETION, LIMITATION, PORTABILITY, OPPOSITION, AND NOT TO BE SUBJECT TO DECISIONS" was approved.

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AUTOMATED INDIVIDUALS ("ARSLPOD") attached as Annex IV of the statement of allegations.

- Monitoring of the process followed by the professionals responsible for handling such requests to ensure it functions correctly.
- Additional training for the professionals in charge regarding the protocol to follow concerning data protection issues and, especially, to reinforce the importance of respecting the rights of the affected individuals.

In this regard, this Agency wishes to point out that the absence of complaints or grievances from any other interested party is not evidence of compliance with current regulations nor that all requests for the exercise of rights or other petitions have been addressed.

Regarding the existence of an ad hoc protocol for processing unsubscribes from the newsletter and requests for the exercise of personal rights, as well as the adoption of new measures to prevent a situation like the present case from recurring, this Agency views them positively; however, this does not preclude considering that in the present case it has not been demonstrated that the request for the deletion of the personal data of the complaining party has been duly addressed, which is the subject of this proceeding.

Finally, regarding the origin of the present complaint, this is also not the subject of this proceeding.

For all the above reasons, the present allegation is dismissed.

Third. Regarding the request for inadmissibility of the notified complaint

GUAW alleges the provisions of Article 65.3 of the LOPDGDD:

"Likewise, the Spanish Agency for Data Protection may dismiss the complaint when the data controller or processor, after a warning issued by the Spanish Agency for Data Protection, has adopted corrective measures aimed at ending the possible non-compliance with data protection legislation and any of the following circumstances apply:

a) That no harm has been caused to the affected party in the case of the infringements provided for in Article 74 of this organic law.

b) That the rights of the affected party are fully guaranteed through the application of the measures."

And requests the filing of this proceeding considering that once the facts were known, GUAW proceeded to delete the data and addressed their request, that no harm has been caused, and that internally the protocols have been reviewed to act with even greater diligence and with the utmost respect for the rights of the interested parties from now on.

In this regard, this Agency wishes to point out that the possibility for this Agency to dismiss a complaint under Article 65.3 of the LOPDGDD is not an obligation but a power recognized by law, and in this case, it has opted for the admission of the complaint for processing, as it was deemed appropriate to investigate the statements made in the aforementioned complaint.

Regarding GUAW's action of deleting the data, this has not been duly evidenced before this Agency, but in any case, it has only occurred after the intervention of this Agency, which is when the complaining party has seen their request satisfied and not before.

Regarding the review of GUAW's internal protocols, this Agency positively values such action; however, this does not preclude insisting that in the present case it has not been demonstrated that the request for the deletion of the personal data of the complaining party has been duly addressed, which is the subject of this proceeding.

For all the above reasons, the present allegation is dismissed.

IV

Right to deletion

Article 17 of the GDPR "Right to deletion ("the right to be forgotten")" states:

"1. The data subject shall have the right to obtain from the data controller the deletion of personal data concerning them without undue delay, and the data controller shall be obliged to delete the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article

6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
d) the personal data have been unlawfully processed;
e) the personal data must be deleted for compliance with a legal obligation under Union or Member State law applicable to the data controller;
f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged to delete such data under paragraph 1, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers who are processing the personal data of the data subject's request for deletion of any link to those personal data, or any copy or replication of the same.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

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a) to exercise the right to freedom of expression and information;
b) for compliance with a legal obligation requiring the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right referred to in paragraph 1 may make it impossible or seriously impede the achievement of the objectives of that processing, or
e) for the formulation, exercise, or defense of claims.”

For its part, Article 12 “Transparency of information, communication, and modalities for exercising the rights of the data subject” of the GDPR establishes that:

“(…) 3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided in another way.

4. If the data controller does not act on the request of the data subject, it shall inform them without delay, and at the latest within one month of receiving the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedies. (…)”

In the present case, on August 9, 2022, the complainant requested the website <https://www.petsonic.fr> to delete their personal data in accordance with Article 17.1 of the GDPR, without having received a response from GUAW until at least June 2023, once this Agency intervened.

That is to say, the legal deadline established to respond to the complainant's request regarding the deletion of their personal data, whether or not their request was acted upon, has been significantly exceeded.

However, for the purposes of the statute of limitations for infringements, Article 74 of the LOPDGDD classifies the following conduct as minor:

“Minor infringements shall be those remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and shall prescribe after one year (…)”

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Therefore, since more than a year has passed since GUAW should have responded to the complainant, the possible infringement of Article 12 of the GDPR would be time-barred.

However, it has not been established in the present file that the personal data of the complainant has been duly deleted.

Therefore, it is considered that the known facts constitute an infringement attributable to GUAW for violation of Article 17 of the GDPR.

V

Classification and qualification of the infringement of Article 17 of the GDPR

The aforementioned infringement of Article 17 of the GDPR constitutes one of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” provides:

“5. Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total global annual turnover of the preceding financial year, whichever is higher:

(...)

b) the rights of data subjects under Articles 12 to 22; (...)”

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a one-year limitation period, in accordance with Article 72 of the LOPDGDD, which classifies the following conduct as very serious:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, very serious infringements shall be those that involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

k) The obstruction or hindrance or repeated failure to address the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. (...)”

VI

Warning

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:

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b) to issue a warning to any responsible party or data processor when the processing operations have infringed the provisions of this Regulation; (...)”

Article 64 of the LOPDGDD, which regulates the “Initiation of the procedure and duration,” states in its third paragraph that:

“3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the responsible party or data processor, may issue a warning, as well as order the responsible party or data processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement.

After this period, it will expire, and consequently, the proceedings will be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.”

In the present case, considering the circumstances listed in Article 83.2 of the GDPR, it is deemed lawful to issue a warning to GUAW.

VII

Adoption of measures

It is agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the responsible party or data processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time frame...”.

The responsible party is required to demonstrate to this Agency within ONE MONTH that it has duly addressed the request for the deletion of the personal data of the complaining party.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO ISSUE A WARNING to GUAW, S.L, with NIF B42793976, for an infringement of Article 17 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER GUAW, S.L, with NIF B42793976, that pursuant to Article 58.2.d) of the GDPR, within ONE MONTH from the date this resolution becomes final and enforceable, to demonstrate that it has proceeded to delete the personal data of the complaining party.

THIRD: TO NOTIFY this resolution to GUAW, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional

suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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